

Court No. - 21

Case :- WRIT - C No. - 18390 of 2023

Petitioner :- Ashad Ali

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Najakat Ali

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The petitioner has challenged the recovery notice dated 20.10.2022 issued by the respondent-Electricity Department.
2. Sri Pranjal Mehrotra, learned counsel for the respondent-Electricity Department, concedes that the impugned notice was issued erroneously without there being any order of any final assessment in existence. He states that the Electricity Department has issued a fresh notice of provisional assessment and will now finalize the proceedings in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.
3. Accordingly, the petition is disposed of in terms of the statement made by Sri Pranjal Mehrotra, learned counsel for the respondent-Electricity Department.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 26.5.2023

Jaideep/-